



Notification Waiver Determination

Australian Food & Fibre – Western Lands Lease Conversion

Acquisition	Bengerang Pty Ltd (Bengerang) applied for a notification waiver in respect of its proposed acquisition of freehold interests in agricultural land that it currently leases from the NSW Government under the perpetual Western Lands Leases, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	26 June 2026

Parties to the Acquisition	The acquirer, Bengerang, is part of an incorporated joint venture and operates as part of the Australian Food & Fibre (AFF) business. AFF's principal activities include the growing, ginning, warehousing, classing, and marketing of cotton, as well as growing and marketing other agricultural products. The vendor of the target land is the NSW Government, which currently owns the freehold interests in the relevant land parcels. The land parcels are located in Bourke, New South Wales, and are presently leased to Bengerang under the Western Lands Leases. Bengerang currently grows and supplies cotton and other agricultural products on the target land. The Acquisition involves the conversion of Bengerang's existing leasehold interests into freehold ownership, in accordance with NSW legislation permitting holders of the Western Lands Leases to purchase the freehold interest in the leased land.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. Bengerang currently operates an agricultural business from the target land and intends to continue operating that business from the target land post-Acquisition b. the Acquisition does not change the number of Bengerang-operated sites or competitor sites in the Bourke area.

	The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the monetary aspects of the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act